

		The allegations are extremely general and not pled with particularity as required in <i>Weinstock, supra</i>, 224 Cal.App.2d at 227-228. Plaintiff does not state any facts regarding the circumstances of his discovery of Defendant's alleged wrongful conduct. With respect to the fraud cause of action, the statute of limitations is only three years pursuant to Code Civ. Proc. § 338(d). Plaintiff alleges in a somewhat conclusory fashion that Defendant concealed material facts about the vehicle's alleged defects, intending to induce Plaintiff to purchase it. (FAC ¶¶ 59-65.) Plaintiff fails to specifically plead facts to circumvent Defendant's statute of limitations defense. Accordingly, based on the foregoing, the Court sustains Defendant's demurrer in its entirety with leave to amend. The motion to strike is moot as a result. Defendant FCA US, LLC shall give notice.
10.	2025-1477322 Gonzales vs. General Motors, LLC	Defendant General Motors, LLC's demurrer to Plaintiffs Mary Gonzales' and Hector Gonzales' Second Amended Complaint ("2AC") is overruled. Defendant's request for judicial notice is granted. <u>1st-3rd causes of action</u> Defendant argues that Plaintiffs' 1st-3rd Song-Beverly causes of action are barred by Code Civ. Proc., § 871.21, a statute effective 1/1/25, which provides in part: (a) An action covered by Section 871.20¹ shall be commenced within one year after the expiration of the applicable express warranty. (b) Notwithstanding subdivision (a), an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle. that claims made pursuant to Civ. Code, § 1793.2(b) or (d) "shall not be brought later than six years after the date of original delivery of the motor vehicle."

¹ Code Civ. Proc., § 871.20 specifies that this chapter in the code applies to any action "[s]eeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of [Civil Code] Section 1793.2," (Code Civ. Proc., § 871.20(a).)

Plaintiffs allege in the 2AC that the vehicle was leased on 8/2/15. (2AC, ¶ 6.)

Plaintiffs' Complaint was not filed until 4/22/25. Defendant characterizes § 871.21(b) as a statute of repose which would have expired on 8/2/21.

In opposition, Plaintiffs argue that the retrospective application of this statute violates their due process rights, citing to *Rosefield Packing Co. v. Superior Court* (1935) 4 Cal.2d 120, 122-23, in which the Court held: "where the change in remedy, as, for example, the shortening of a time limit provision, is made retroactive, there must be a reasonable time permitted for the party affected to avail himself of his remedy before the statute takes effect. If the statute operates immediately to cut off the existing remedy, or within so short a time as to give the party no reasonable opportunity to exercise his remedy, then the retroactive application of it is unconstitutional as to such party."

The Court agrees. After careful consideration of the available legal authority, the Court determines that because there is no indication in the legislative history of § 871.21 that application should be retroactive, the statute only applies prospectively. (See *Evangelatos v. Superior Ct.* (1988) 44 Cal. 3d 1188, 1193-94; *Quarry v. Doe I*, (2012) 53 Cal.4th 945 ("In construing statutes, there is a presumption against retroactive application unless the Legislature plainly has directed otherwise by means of express language of retroactivity or ... other sources that provide a clear and unavoidable implication that the Legislature intended retroactive application."); *Niagara Fire Ins. Co. v. Cole* (1965) 235 Cal. App. 2d 40, 42-43 ("a statute shortening the period of limitations cannot be applied retroactively to wipe out an accrued cause of action that is not barred by the then applicable statute of limitations.... Even when applied prospectively, the claimant must be allowed a reasonable time within which to proceed with his cause of action.") (citation omitted).)

The Court disagrees with Defendant's argument that the three-month grace period between when Governor Newsom signed AB 1755 (which created Section 871.20 et seq) into law and the law took effect constitutes a reasonable time to file suit. (See *Newman v. Emerson Radio Corp.* (1989) 48 Cal.3d 973, 983; *Sznyter v. Malone* (2007) 155 Cal.App.4th 1152, 1162.)

In their 2AC, Plaintiffs have added more specific allegations in the Second Amended Complaint to support the tolling of the statute of limitations. In ¶ 15, Plaintiffs allege that they "only discovered

Defendant's wrongful conduct alleged herein around March 10, 2025, when Plaintiffs presented the Vehicle to Defendant's authorized repair facility with complaints including, inter alia, rough idle. Defendant's technicians inspected the Vehicle, verified Plaintiffs' complaints, and indicated that the engine lifters would need to be replaced at a significant cost, despite the lifters being replaced shortly prior to this under warranty."

Based on the foregoing, the Court overrules the demurrer to the 1st-3rd causes of action.

4th cause of action for breach of implied warranty

Plaintiffs' cause of action for breach of implied warranty is subject to a four-year statute of limitations. (Comm. Code, § 2725; *Montoya v. Ford Motor Co.* (2020) 46 Cal.App.5th 493, 495.)

Cal. U. Com. Code, § 2725 provides in part (emphasis added):

- (1) An action for breach of any contract for sale must be commenced within four years after the cause of action has accrued. By the original agreement the parties may reduce the period of limitation to not less than one year but may not extend it.
- (2) A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.

There is legal authority providing that the implied warranty of merchantability under the Song-Beverly Act extends to future performance. Civil Code 1791.1(c) states: "The duration of the implied warranty of merchantability ... shall be coextensive in duration with an express warranty which accompanies the consumer goods, provided the duration of the express warranty is reasonable; but in no event shall such implied warranty have a duration of less than 60 days nor more than one year following the sale of new consumer goods to a retail buyer."

And the Court of Appeal in *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1304 states that the "implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale." The Court held that that "by giving the implied warranty a limited prospective existence beyond the time of delivery, the Legislature created the possibility that the implied

		warranty could be breached after delivery,” which “is a change from the Uniform Commercial Code, under which the implied warranty could be breached only at the time of delivery.” (<i>Id.</i> at 1309.) Furthermore, in <i>Krieger v. Nick Alexander Imports, Inc.</i> (1991) 234 Cal.App.3d 205, 217, the court noted that a “promise to repair defects that occur during a future period is the very definition of express warranty of future performance....” (See also <i>Jones v. Credit Auto Center, Inc.</i> (2015) 237 Cal.App.4th Supp. 1, 9 (“By providing a duration period for the implied warranty of merchantability, [the statute] contemplates that a breach may occur either when the goods are first purchased, or afterwards, when a latent defect is discovered by the buyer.”).) Here, as noted above, Plaintiff has added more specific allegations in the Second Amended Complaint to support the tolling of the statute of limitations. (SAC, ¶¶ 15, 16.) Therefore, the demurrer is also overruled to this cause of action. Plaintiffs shall give notice.
11.	2025-1489215 Mosley vs. Givargis	The court is inclined to grant defendant Ronald Givargis’ unopposed motion to vacate the default entered against him in this action if he presents his proposed answer or pleading to the court. The court will hear from Defendant and plaintiff Loyd Mosley’s counsel. The law favors a trial on the merits, and doubts in applying Code of Civil Procedure section 473 are resolved in favor of the party seeking relief from default. <i>Iott v. Franklin</i> (1988) 206 Cal.App.3d 521, 526. If a party moves promptly for default relief, or if the granting of the relief from default will not prejudice the opposing party (other than losing the advantage of the default), only <i>slight</i> evidence will justify an order granting such relief. <i>Ibid.</i> For this reason, “a trial court order denying relief is scrutinized more carefully than an order permitting trial on the merits.” <i>Fasuyi v. Permatex, Inc.</i> (2008) 167 Cal.App.4th 681, 696 (citations omitted). The most fundamental of those principles is that affirmed in <i>Au-Yang v. Barton</i> (1999) 21 Cal.4th 958, 963, 90 Cal.Rptr.2d 227, 987 P.2d 697: “[T]he policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary.” (<i>Ibid.</i>, Citing among other cases, <i>Weitz v.</i>